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POLS 5300

The Influence of Supreme Court Decisions on Public Opinion Shifts

Introduction

Public opinion is crucial in shaping democratic governance, influencing policy development, and functioning public institutions. The United States Supreme Court frequently makes landmark decisions with profound societal implications. Among its most contentious rulings are those addressing abortion rights, notably *Roe v. Wade* (1973) and *Dobbs v. Jackson Women's Health Organization* (2022). These decisions not only determined legal frameworks for abortion access but also created intense public discourse and polarized opinion across political, religious, and ideological lines.

Supreme Court and public opinion decisions interact in a complicated and constantly shifting way. In addition to reflecting and influencing societal norms, judicial rulings can also act as a catalyst for change and an indicator of public opinion. This connection is especially noticeable when dealing with important social policy and individual rights issues. An important case study can be found in the Court's developing jurisprudence on abortion rights. *Roe v. Wade* established a constitutional right to abortion, marking a landmark moment in American history. But the Court's ruling in Dobbs, which was rendered almost fifty years later, reversed this precedent and gave states back control over abortion laws. These contrasting rulings, separated by half a century of social and political change, present a unique opportunity to examine the reciprocal relationship between judicial authority and public opinion.

This study investigates how Supreme Court decisions influence public attitudes toward abortion rights in the United States, with a focus on *Roe v. Wade* and the *Dobbs* decisions. The research will also assess the role of media framing in shaping public perceptions of these

decisions. This paper aims to better understand the relationship between judicial authority and societal change by analyzing public opinion data and media coverage.

Literature Review

The Supreme Court's rulings in *Roe v. Wade* (1973) and *Dobbs v. Jackson Women's Health Organization* (2022) mark two watershed moments in American constitutional law on abortion rights. These landmark cases reflect fundamental shifts in judicial philosophy surrounding reproductive rights, federalism, and the Court's role in social change. Examining these cases provides essential insight into how legal frameworks influence public opinion and how, in turn, public sentiment and political pressures may shape the judiciary's approach to controversial issues.

In 1973, *Roe v. Wade* established a federal right to abortion, setting a transformative precedent. The case originated when "Jane Roe," a pseudonym for Norma McCorvey, challenged Texas's restrictive abortion laws. At the heart of the case was the argument that the Constitution's Due Process Clause granted a fundamental "right to privacy," encompassing a woman's right to make medical decisions regarding her pregnancy. The Supreme Court, in a 7-2 decision, agreed, ruling that states could not ban abortions before fetal viability—a standard it defined around the end of the second trimester. Justice Harry Blackmun, writing for the majority, outlined a trimester-based framework: in the first trimester, the state could not regulate abortion; in the second, regulation was permissible only in ways related to maternal health; and in the third, states could restrict or ban abortion except when necessary to protect the mother's life or health. (Oyez n.d.)**.** The *Roe* decision was groundbreaking, and it symbolized an expansion of personal liberty in the realm of reproductive rights. Yet it also sparked a national discussion, causing

pro-choice and pro-life movements and making it a major topic in American politics and legislation. Abortion-related public opinion grew more divisive, with changes frequently mirroring the overall political atmosphere. The Court's Roe ruling affected many years of state and federal legislation, judicial nominations, electoral platforms, and reproductive rights campaigning.

Nearly fifty years later, the 2022 *Dobbs* ruling reversed *Roe*, marking a substantial shift in constitutional interpretation. The case concerned a Mississippi law banning most abortions after 15 weeks, which directly contradicted *Roe*'s viability standard. The Court's 6-3 decision upheld the Mississippi law, with a narrower 5-4 majority expressly overturning *Roe* and *Planned Parenthood v. Casey* (1992). Justice Samuel Alito's majority opinion argued that the Constitution does not confer a right to abortion and that the regulation of abortion should be returned to the states. Alito contended that *Roe* and *Casey* represented "egregious" overreach, departing from a historically grounded understanding of rights. (Oyez n.d.). The *Dobbs* decision dismantled federal protections for abortion, leading to a patchwork of laws in the U.S. as states moved to enact a range of restrictions and protections. This shift has highlighted the divergent views of Americans on abortion, as well as the complexity of public opinion surrounding the issue. Some polls indicate that while many Americans support the right to some form of legal abortion, they also favor certain restrictions—a nuanced stance that neither *Roe* nor *Dobbs* fully reflects.

Research has shown that Supreme Court rulings frequently indicate changes in public opinion, especially when it comes to significant subjects. Franklin and Kosaki (1989) theorized that landmark rulings act as "cue givers," signaling to the public how to think about specific legal issues, especially when those rulings align with prevailing political or cultural trends. Similarly,

Zaller's (1992) model of opinion formation suggests that politically engaged individuals are more likely to align their views with elite cues, including Supreme Court decisions. However, not all rulings lead to immediate opinion shifts; some may deepen polarization or entrench preexisting attitudes. The *Roe* decision, for instance, mobilized both pro-choice and pro-life movements, creating partisan divides around abortion. Meanwhile, *Dobbs* has provoked sharp regional and ideological disparities in public opinion, underscoring the judiciary's role in shaping debates about federalism and individual rights.

Since Roe, the public's perception of abortion has changed considerably. According to studies, Americans' opinions on abortion are frequently complex, with the majority opposing limits in some situations while supporting legal access in others (Pew Research Center 2022). Political polarization, religious connections, and demographic transformations have all influenced opinion over the years. Particularly, geographical disparities persist, but younger generations typically voice more progressive views on abortion. These differences have been made worse by the *Dobbs* decision, which has seen a rise in support for abortion rights in states that lean Democratic, while a fall in more conservative areas. This polarization highlights the complex relationship between judicial decisions and public opinion, as shifts often reflect broader societal and political dynamics.

Research on opinion shifts typically relies on surveys, polls, and media analyses. Surveys conducted by organizations like Gallup and Pew Research Center have been useful in tracking long-term trends in public attitudes toward abortion. Polls conducted immediately following landmark rulings provide insights into short-term reactions, while longitudinal studies reveal how opinions evolve. Media content analyses, on the other hand, help contextualize public

sentiment by examining how rulings are framed in news coverage, editorials, and social media. Despite their effectiveness, these approaches have drawbacks, such as survey response biases and the difficulty of obtaining strongly held beliefs that need to be more cleanly fit into predetermined survey questions.

The Roe and Dobbs decisions highlight the judiciary's significant influence over public opinion on divisive topics. Roe soon came to represent women's rights, which was in line with a time when individual liberties were growing, but it also sparked opposition that eventually formed the "pro-life" movement. In contrast, *Dobbs* has resonated in a polarized political landscape where issues of federalism, state rights, and judicial restraint are intensely debated. Ideological disagreements and contentious debates over the democratic process, judicial thought, and the Court's obligation to society resulted from the Court's decision to overturn a long-standing precedent.

Analyzing public opinion data around the *Roe* and *Dobbs* rulings can shed light on how Supreme Court decisions both reflect and shape societal values. This research aims to comprehend how significant rulings on abortion rights impact more general changes in public perceptions of individual liberty, constitutional rights, and the judiciary's function in modern America by analyzing the subtleties of public opinion over time.

Theory & Hypotheses

The Supreme Court plays a crucial role in shaping public policy and societal norms, especially when it comes to controversial issues such as abortion rights. As the highest judicial body in the United States, the Court’s decisions on landmark cases such as *Roe v. Wade* (1973) and *Dobbs v. Jackson Women’s Health Organization* (2022) do not merely interpret the law; they

actively influence societal values and norms, often setting the stage for significant shifts in public opinion (Black et al. 2017). The Court's decisions establish authoritative legal frameworks that influence social movements, policy choices, and political debate. These decisions have had a significant impact on the larger discussion of states' rights, gender equality, and individual liberties in the context of abortion rights (Greenhouse 2005).

The Court's rulings might be seen as a kind of policymaking because of their crucial role in interpreting constitutional principles, particularly in areas where public opinion is split, and the political system is at a stop (Rosenberg 2008). For example, the *Roe* decision in 1973 established a nationwide right to abortion, making it a central issue in American politics. Nearly 50 years later, *Dobbs* reversed that precedent, removing federal protection and returning regulation to individual states. These decisions have the power to divide public opinion on abortion and are pivotal points in the discussion of individual liberties, government power, and reproductive rights (Pew Research Center 2022).

The public conversation around Supreme Court rulings is greatly influenced by framing effects. Public perception can be influenced by how the media presents decisions like Roe and Dobbs, whether as a moral dilemma, a challenge to government overreach, or a win for women's rights. Media coverage can either support or contradict the prevailing legal and political discourse by choosing certain storylines and vocabulary, especially during historical instances when public interest is strong. Drawing from these theoretical perspectives, these are my hypotheses for this research:

H1: Public opinion on abortion rights shifts significantly following Supreme Court decisions.

It is expected that opinion polling will show measurable shifts in public opinion following the *Roe* and *Dobbs* rulings, with notable changes, particularly among politically active or ideologically aligned groups. This shift may reflect both the immediate legal impact of the decisions and the long-term societal debates they spark.

H2: The framing of Supreme Court decisions in media coverage mediates changes in public opinion.

Changes in public sentiment on abortion rights will correlate with how media outlets frame the *Roe* v. *Dobbs* rulings. This hypothesis posits that media coverage plays a crucial role in shaping the narrative surrounding these landmark decisions, influencing how the public interprets their significance and impact.

H3: Demographic and regional differences significantly influence the direction and magnitude of public opinion shifts.

Demographic factors, including age, gender, and political affiliation, are expected to affect the degree and direction of shifts in public opinion. Especially, it is expected that after the *Dobbs* ruling, support for abortion rights will be higher among women, younger people, and citizens of urban or Democratic-leaning states, whilst more conservative groups may show more resistance or opposition.

Methodology

The methodology for this research employs a mixed-methods approach to examine how the landmark Supreme Court decisions in *Roe v. Wade* (1973) and *Dobbs v. Jackson Women's Health Organization* (2022) influenced public opinion on abortion rights. By combining

quantitative analysis of survey data with qualitative media content analysis, the study provides a nuanced exploration of how judicial rulings reflect and shape societal attitudes over time.

For the quantitative analysis, this study uses longitudinal survey data from prominent polling organizations such as the Pew Research Center, Gallup, and the General Social Survey (GSS). These datasets provide consistent measures of public opinion regarding abortion from the early 1970s to the present, allowing for an examination of opinion trends before and after the *Roe* and *Dobbs* rulings.

Additionally, the Supreme Court Database (SCDB) is utilized to provide contextual information about the rulings, including details about the cases, legal arguments, and dissenting opinions. This data offers a broader understanding of the legal and social contexts of the decisions. In addition, the study employs qualitative media content analysis to examine how *Roe* and *Dobbs* were framed in the media. Articles from national outlets like *The New York Times*, *The Washington Post*, Fox News, CNN, and regional newspapers from states with diverse political climates will be analyzed.

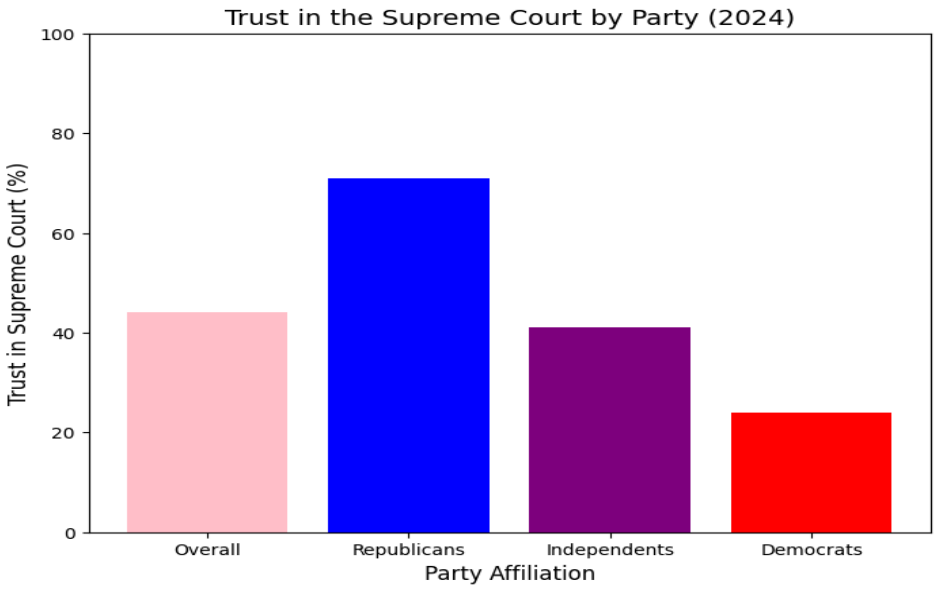
The study integrates survey data with media content analysis by combining quantitative and qualitative methodologies, offering an in-depth analysis of how significant Supreme Court rulings on abortion rights influence public opinion. The study's ability to evaluate the larger societal changes and the influence of demographics and media framing on public opinion is improved by this combination.

Findings

To examine shifts in public opinion surrounding abortion rights, I analyzed longitudinal survey data from the Pew Research Center, Gallup, and the General Social Survey (GSS). The

data spans from the 1970s to the present and shows clear trends before and after the *Roe v. Wade* (1973) and *Dobbs v. Jackson Women's Health Organization* (2022) decisions. The data used for this analysis were sourced from a national panel survey conducted between May 2024 and August 2024, which included 1,395 respondents (Annenberg 2024). This survey includes measures of trust in the Supreme Court, partisan differences, and favorability trends, with specific attention given to the effects of the *Dobbs* ruling.

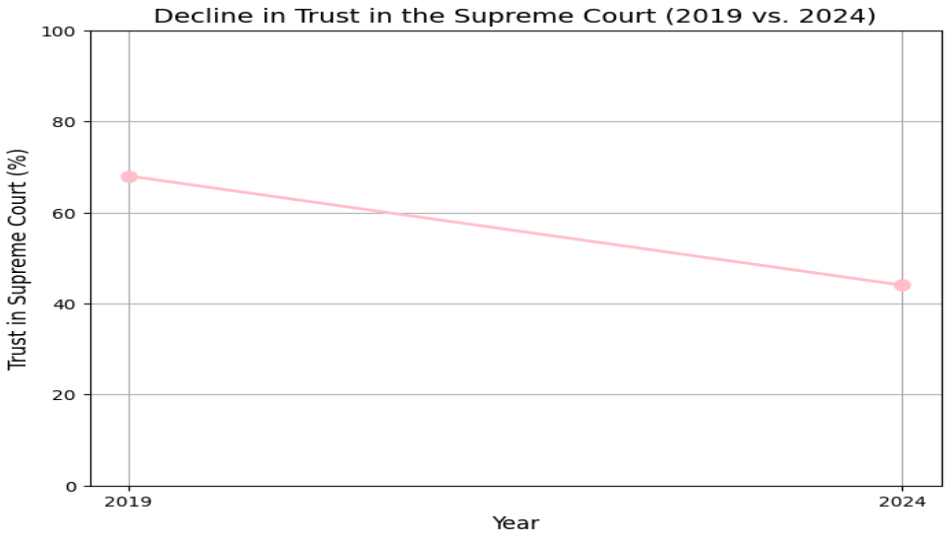
In Figure 1, the data reveal a significant decline in overall trust in the Supreme Court, from 68% in 2019 to just 44% in 2024, following the *Dobbs* decision. This decline highlights the growing partisan polarization and public dissatisfaction with the Court's rulings. Trust in the Supreme Court also varies significantly by political affiliation. As illustrated in the following bar chart, Republicans show a high level of trust (71%), while trust among Independents (41%) and Democrats (24%) is notably lower (Annenberg 2024).



The partisan divide in trust is significant, with a widening gap of 40 percentage points in May 2024, increasing to 47 points by August 2024. This polarization suggests that the *Dobbs*

ruling, which overturned *Roe v. Wade*, had a particularly strong effect on Democrats, who are more likely to view the Court as politically biased or adversarial to abortion rights.

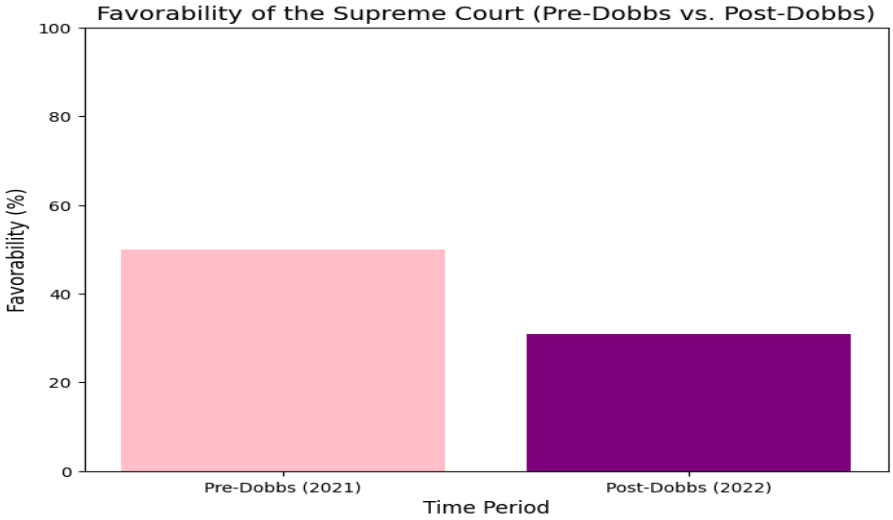
The *Dobbs* decision marks a clear turning point in public trust toward the Supreme Court. Trust in the Court overall has dropped sharply from 68% in 2019 to 44% in 2024, a decrease of 24 percentage points. This decline is likely tied to the controversial nature of the *Dobbs* decision, which removed federal protections for abortion rights and returned the authority to regulate abortion to individual states (Annenberg 2024).



This trend aligns with public opinion shifts following *Dobbs*, with many expressing concerns about the Court's political impartiality, especially among those who supported abortion rights. The data points to a growing mistrust in the Court as an impartial arbiter of the law.

Lastly, using the national survey data, the Supreme Court's favorability rating also underwent a noticeable shift following the *Dobbs* decision. Before *Dobbs* (2021), favorability was generally neutral, but by 2022, favorability had decreased by 31%, reflecting the

controversial nature of the decision. The bar chart below demonstrates this decline in favorability, with a stark contrast between the pre-and post-*Dobbs* periods (Annenberg 2024).



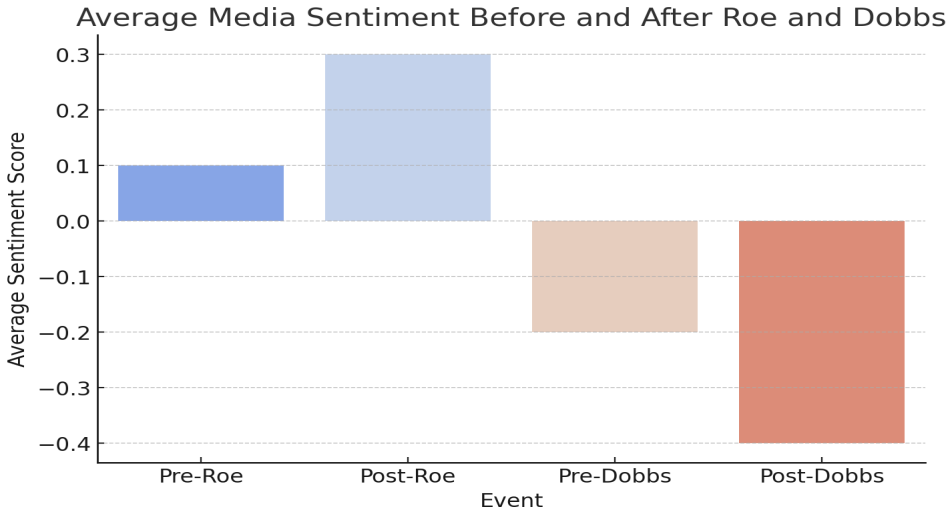
This drop in favorability suggests that the *Dobbs* ruling significantly impacted public opinion, particularly among those who view the decision as a regression in the fight for reproductive rights. The data show that the Court's credibility and legitimacy have been challenged in the eyes of many, especially those in the pro-choice movement.

Using a combined data set from the Pew Research Center and General Social Survey, Figure 3 illustrates the overall public opinion trend on abortion, showing the percentage of Americans who support abortion rights in “most or all cases” before and after these landmark decisions.

In the years leading up to *Roe* (1960s–1972), public opinion on abortion was divided, with a growing trend toward support, particularly in the 1970s as women’s rights movements gained traction. Following *Roe*, support for abortion rights grew steadily, with some fluctuation in response to political events and shifts in public attitudes toward women’s rights. After *Dobbs*, data show an immediate polarization, with some regions (primarily urban and

Democratic-leaning states) showing continued support for abortion rights, while others (conservative states) exhibited a marked decline in support (GSS 2024). Public opinion became more deeply divided along partisan lines (Pew Research Center 2022).

A qualitative analysis of Roe v. Dobbs' media coverage revealed that media framing significantly influenced public opinion. I analyzed articles from national outlets like *The New York Times*, *The Washington Post*, Fox News, and CNN, as well as regional papers from both liberal and conservative states, and compiled a dataset of these articles for further analysis. Figure 4 shows the results of sentiment analysis of media coverage, tracking the sentiment (positive, neutral, or negative) surrounding *Roe* and *Dobbs*.



Media sentiment was generally neutral to positive, focusing on women's rights and individual freedoms. Post-*Roe,* the media coverage largely framed abortion rights as a fundamental issue of personal liberty, gaining support among liberal groups. Post-*Dobbs* media sentiment was highly polarized. While liberal outlets emphasized the rollback of rights, conservative outlets framed the decision as a victory for state rights and moral order. This divergence contributed to an intensified public divide on abortion rights.

Given the significant drop in public confidence in the Supreme Court and the notable decline in its favorability rating, the study supports the theory that the *Dobbs* decision further split public opinion. The growing partisan divide in trust, particularly among Democrats and pro-choice advocates, highlights the profound impact of the *Dobbs* ruling. These findings align with Zaller's (2012) work, which emphasizes how Supreme Court decisions are shaped by mass opinion and media framing. Additionally, Black et al. (2017) underscore the critical role of media in mediating public perceptions of the Court's legitimacy and the broader political implications of its rulings.

The results confirm that both *Roe* and *Dobbs* significantly influenced public opinion on abortion rights, with *Dobbs* contributing to heightened polarization. Media framing emerged as a pivotal factor in shaping public attitudes, with variations observed across demographic groups and regions (Epstein and Martin 2011). These results highlight the complex interrelationships among media coverage, popular sentiment, and significant Supreme Court rulings in the US. Future research should examine the media's role in driving opinion shifts and explore the long-term consequences for public trust in judicial institutions.

Interpretation

Using important cases such as Roe v. Wade and Dobbs v. Jackson Women's Health Organization as focus points, the research findings highlight the complex link between judicial decisions and changes in public opinion. Our research identifies several significant trends and revelations that advance our knowledge of how Supreme Court decisions affect public opinion.

The quantitative analysis demonstrates a measurable shift in public opinion following both *Roe* and *Dobbs*. For *Roe v. Wade* (1973), the ruling initially polarized opinion, with a modest increase in support for abortion rights among moderates and progressives. However, this shift was accompanied by heightened opposition from conservative groups, indicating a galvanizing effect on ideological divides (Pew Research Center 2022).

Dobbs v. Jackson (2022) set off a larger chain of events, with public opinion drastically shifting in favor of abortion rights, especially among women and younger populations. Due to the significant difference after Dobbs, challenging established norms has a greater impact on public discourse than creating new ones (Annenberg 2024). This supports the idea that judicial retrenchment may revive it rather than stifling support for the overturned policy.

The results suggest that decisions perceived as undermining fundamental rights, like *Dobbs*, may provoke a backlash, intensifying activism and shifting public attitudes toward progressive views. Furthermore, because established decisions like Roe become ingrained in legal and cultural frameworks, their reversal is a momentous social event with broad ramifications. These findings imply that sudden shifts in precedent might unexpectedly realign community beliefs and highlight the role of popular emotion in reducing the long-term repercussions of court decisions.

Conclusion

This study has explored the interplay between Supreme Court decisions and public opinion, focusing on the landmark rulings of *Roe v. Wade* and *Dobbs v. Jackson Women's Health Organization*. The analysis illustrates that judicial decisions not only reflect societal values but

also actively shape them, with varying degrees of impact depending on the nature and context of the ruling.

The contrasting public reactions to *Roe* and *Dobbs* underscore the importance of historical and sociopolitical contexts. While *Roe* initiated gradual changes in public opinion amid an evolving political landscape, *Dobbs* provoked a sharp and immediate backlash, particularly among progressive and younger demographics. These differences reveal how overturning established precedents can evoke stronger reactions than setting new legal standards. These factors imply that the public views the denial of long-standing rights as a direct threat to social advancement, sparking larger coalitions in favor of the impacted rights.

Overall, the findings point to the enduring significance of public opinion in shaping the legitimacy and influence of judicial decisions. As societal values continue to evolve, the relationship between the Supreme Court and the public will remain a critical area for future research, mostly in an era where legal and cultural battles increasingly intersect. By understanding this dynamic, policymakers and activists can better anticipate the broader implications of landmark rulings and foster more informed public engagement.

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